

Court No. - 37

Case :- WRIT - C No. - 15566 of 2013

Petitioner :- Ganga Prasad

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Ram Sheel Sharma

Respondent Counsel :- C.S.C.,Amrit Lal Yadav

Hon'ble Sheo Kumar Singh,J.

Hon'ble Brijesh Kumar Srivastava-II,J.

As prayed by Sri Yadav, learned Advocate, put up this matter as fresh on 1.4.2013.

Order Date :- 19.3.2013

Sachdeva

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Hon'ble Sheo Kumar Singh,J.

Hon'ble Sudhir Kumar Saxena,J.

Case was taken up in the revision of the list.

Nobody is present for the petitioner.

Sri Yadav, learned counsel for the corporation is present.

As prayed, put up this matter on 5th April, 2013, as fresh.

Order Date :- 1.4.2013

M.A.A.

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Petitioner's grievance is that he has objection in final assessment bill on the ground that no information in respect to provisional assessment was received by him. Beside this, said amount is also highly excessive. The recovery is of an amount of Rs. 2,64,532/-.

On the facts, this Court directs petitioner to deposit an amount of Rs. 50,000/- with the concerned Executive Engineer within a period of 15 days from today.

If petitioner deposits Rs. 50,000/-, no coercive measure shall be taken against him to recover the remaining amount.

Representation/objection in respect to the correctness of the Bill will be entertained and on which appropriate decision will be taken on merits in accordance with law as provided under Clause 6.14 read with Clause 6.5 of U.P. Electricity Supply Code, 2005.

Writ petition stands disposed of.

Order Date :- 11.4.2013

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